

Court No. - 39

Case :- WRIT - C No. - 27239 of 2021

Petitioner :- Madhuri Gupta

Respondent :- Uttar Pradesh Power Corporation Limited And 4 Others

Counsel for Petitioner :- Manta Ram Gupta

Counsel for Respondent :- Udit Chandra, Krishna Agarawal

Hon'ble Mrs. Sunita Agarwal, J.

Hon'ble Krishan Pahal, J.

Sri Krishna Agarawal, learned Advocate has appeared on behalf of the respondent no.1. Sri Udit Chandra, learned Advocate has put in appearance on behalf of the respondent nos. 2, 3 & 4.

The question of issuing notice to respondent no.5 would be considered at a later stage.

The order of rejection of the application of the petitioner communicated online is subject matter of challenge in the present petition with the categorical assertion that she is an occupier and not owner of the house-in-question and on an application moved by the owner or the occupier of the premises-in-question, the Distribution Licencee is under obligation to provide electricity connection.

Sri Udit Chandra, learned counsel for the respondents no.2 to 4 prays for and is granted one week time to seek instructions in writing or to file a short counter affidavit explaining as to why or under which provision, the electricity connection granted to the petitioner herein had been disconnected.

As prayed, put up this case as fresh on 25.11.2021.

Order Date :- 17.11.2021

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Hon'ble Mrs. Sunita Agarwal, J.

Hon'ble Krishan Pahal, J.

Counter affidavit served upon the counsel for the petitioner today.

Learned counsel for the petitioner prays for and is granted two days time to file rejoinder affidavit.

Put up this case as fresh on 29.11.2021.

Order Date :- 25.11.2021

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Counsel for Respondent :- Udit Chandra, Krishna
Agarawal

Hon'ble Siddhartha Varma, J.

Hon'ble Om Prakash Tripathi, J.

Affidavits have been exchanged between the parties.

Learned counsel for Electricity Department has drawn the attention of the Court to Clause 4.4(a)(i) of the U.P. Electricity Supply Code 2005, which is reproduced hereunder:-

"4.4 Processing of Application for Supply:

(a) Application for new connections, in prescribed form (Annexure 4.1) and complete in all respects and accompanied by the prescribed Registration-cum-processing fee, shall be filed in duplicate in the office, specified by the Licensee, along with -attested true copies of the following documents:

*(i) Proof of ownership of the premises in the form of registered sale deed or partition deed or succession or heir ship certificate or deed of last will or Proof of occupancy such as valid power of attorney or latest rent paid receipt or valid lease deed or **indemnity form** as per Annexure 4.2. Order Copy of appropriate court, in case of litigation regarding ownership of the premises, has to be enclosed."*

Learned counsel for the Electricity Department submitted that one of the methods for getting the electricity connection was that the occupier submits the indemnity form.

The petitioner may submit the indemnity form as is contained as Annexure 4.2 of the electricity code along with a copy of this order before the respondent no. 3.

Electricity department may consider the grant of the electricity connection within a period of two weeks from the submission of the electricity indemnity form in accordance with law.

Put up this case as fresh on 20.01.2022.

(Om Prakash Tripathi, J.) (Siddhartha Varma, J.)

Order Date :- 3.12.2021/Sharad/-

Court No. - 21

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Petitioner :- Madhuri Gupta

Respondent :- Uttar Pradesh Power Corporation Limited And 4 Others

Counsel for Petitioner :- Manta Ram Gupta

Counsel for Respondent :- Udit Chandra, Krishna Agarawal

Hon'ble Siddhartha Varma, J.

Hon'ble Shekhar Kumar Yadav, J.

Sri Manta Ram Gupta, learned counsel for the petitioner has appeared through Video Conferencing and has stated that the relief as was prayed for in the instant writ petition has been granted and no further order is required to be passed. He, therefore, prays that the writ petition be dismissed as having become infructuous.

Learned counsel for the respondents have no objection.

The writ petition is, accordingly, dismissed as having become infructuous. Interim order, if any, stands vacated.

Order Date :- 20.1.2022

GS

(Siddhartha Varma, J.)

(Shekhar Kumar Yadav, J.)